



File No.: EXP202315709

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection were observed, leading to the initiation of actions under file number EXP202304413.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD hereinafter).

In the framework of the investigative actions, four requests for information were sent to TECH TELECOM LEGAL SERVICES, S.L. with NIF B42981118, related to the complaint indicated in the first section, requiring that within ten working days it present to this Agency the information and documentation specified therein. These requests were registered as sent on July 18, August 11, August 28, and September 25, 2023.

THIRD: The requests for information were notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

The first and third were collected on July 27 and September 8, 2023, as evidenced by the acknowledgments of receipt in the file.

The second and fourth were not collected by the responsible party within the period for availability, as evidenced by the acknowledgments of receipt in the file, understanding that the notifications were made, in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP, on August 22 and October 6, 2023.

FOURTH: Regarding the requested information, TECH TELECOM LEGAL SERVICES, S.L. has not submitted any response to this Spanish Agency for Data Protection within the deadlines granted for this purpose.

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FIFTH: According to the report obtained from the AXESOR tool, the entity TECH TELECOM LEGAL SERVICES, S.L. is a SME (Microenterprise), established in 2021, with a business volume of (...) euros in 2021.

SIXTH: On December 12, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against TECH TELECOM LEGAL SERVICES, S.L., in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: The aforementioned initiation agreement was collected by TECH TELECOM LEGAL SERVICES, S.L. on December 16, 2023, as evidenced by the acknowledgment of receipt in the file.

EIGHTH: On December 29, 2023, with entry registration numbers REGAGE23e00088270225 and REGAGE23e00088271810, TECH TELECOM LEGAL SERVICES, S.L. submitted allegations to the initiation agreement of the present sanctioning procedure in which it states that "In no case has TECH TELECOM LEGAL SERVICES, S.L. been contracted to perform the functions of Data Protection Representative in Spain for STG GROUP, S.A.C. (...) The functions that TECH TELECOM LEGAL SERVICES is supposed to perform, based on the services contracted by STG GROUP, are those of

legal advice, receipt of notifications from the AEPD, and communication of the information that STG GROUP provides to address them (...) TECH TELECOM LEGAL SERVICES contractually communicates that to perform the assigned functions, collaboration from STG GROUP is necessary, providing within the timeframe established in the notification, the information required by the AEPD (...) TECH TELECOM LEGAL SERVICES is responsible for the requests made by the AEPD, as long as STG GROUP does not fail in its obligation to provide the required information within the established timeframe for this purpose (...) The original recipient of the request is STG GROUP, S.A.C., which has the obligation to provide information requested by the AEPD, arising from its business activity, not from the business activity of TECH TELECOM LEGAL SERVICES.

TECH TELECOM LEGAL SERVICES, S.L., regarding notifications from any Spanish Public Administration body, is simply tasked with collecting and communicating the response provided by STG GROUP to the requests made by the AEPD (...); this is due to the fact that STG GROUP lacks a valid certified electronic signature in Spain, and such a signature is necessary to submit the response to the AEPD's requests electronically; it is TECH TELECOM LEGAL SERVICES that is simply responsible for collecting and communicating to the AEPD the information provided by STG GROUP, using its own electronic signature; otherwise, it would be completely unfeasible to communicate the information requested electronically.

The information requested by the AEPD can only be provided by STG GROUP, as it is the one that possesses it. TECH TELECOM LEGAL SERVICES, S.L. does not have among its functions the document management of the business activity of STG GROUP S.A.C. with its clients (Subscribers to the telephone lines); therefore, it is impossible

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3/7

that TECH TELECOM LEGAL SERVICES has access to the requested information, unless STG GROUP provides it in a timely manner. TECH TELECOM LEGAL SERVICES made the required information available to the AEPD on Saturday, December 16, 2023, at 19:25:52 (attached as Annex II to this document of allegations), as soon as STG GROUP provided it (on the night of December 15, due to the time difference between Peru and Spain); all this, despite the continuous notifications from TECH TELECOM LEGAL SERVICES to STG GROUP throughout the requests already indicated in the INITIATION AGREEMENT OF SANCTIONING PROCEDURE. It should be noted that this provision was made before TECH TELECOM LEGAL SERVICES became aware of the INITIATION AGREEMENT OF SANCTIONING PROCEDURE (access to the content of the notification on December 16, 2023, at 20:40), which is attached as Annex III to this document of allegations. Regarding the requested information, TECH TELECOM LEGAL SERVICES, S.L. states that "The same information requested from STG GROUP for EXP202304413 was previously requested from LEAST COST ROUTING TELECOM, S.L. (Request that we legally attended to and whose response we drafted from TECH TELECOM LEGAL SERVICES, with the call log information HEOS provided to us by LEAST COST ROUTING TELECOM, S.L.; in performance of our role as Data Protection Delegates of that entity). (...) The required information for this same file was resolved on May 11, 2023, at 17:04:35 by LEAST COST ROUTING TELECOM, S.L."

TECH TELECOM LEGAL SERVICES, S.L. requests that it be taken into consideration that "From TECH TELECOM LEGAL SERVICES, in performing the role of representative for notifications for STG GROUP and for other companies located in Peru, we collaborate with the AEPD so that it can effectively carry out its information requests to entities located in Peru; since if we do not receive and attend to (Sending the information provided to us by the companies) the notifications from the AEPD, it would not be possible for the AEPD to collect the required information by directing the notifications directly to the companies in Peru, which are accustomed to not collecting them, knowing that the AEPD itself has declared in several resolutions of files that it has no jurisdiction in Peru."

Based on the above, TECH TELECOM LEGAL SERVICES, S.L. concludes that "it is not responsible nor is it the obligated subject to provide the requested information" and that "the infringement for

violation of Art. 58.1.a. of the GDPR is not attributable to TECH TELECOM LEGAL SERVICES, S.L., as it is neither the Controller nor the Processor, nor a representative of the Controller or the Processor.”

Furthermore, TECH TELECOM LEGAL SERVICES, S.L. points out that the “principle of the presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and verified that proves the facts that motivate the accusation or the involvement of the alleged infringer in them.” In this regard, it states that “it has not intervened in the obstruction of the provision of the requested information; on the contrary, it has repeatedly attempted to have STG GROUP provide information that only this entity had, which could be carried out as soon as this entity communicated the required information, thanks to the constant insistence of TECH TELECOM LEGAL SERVICES.”

Based on Article 53.2.b. of the LPACAP and Article 63.2 of the LOPDGDD, as well as all that has been alleged, TECH TELECOM LEGAL SERVICES, S.L. requests that “the non-existence of responsibility of TECH TELECOM LEGAL SERVICES in the infringement attributed in the document of INITIATION OF SANCTIONING FILE be taken into account.”

NINTH: On October 1, 2024, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection agree to archive the file EXP202315709 against TECH TELECOM LEGAL SERVICES, S.L.

Additionally, the procedure was made known so that within ten days TECH TELECOM LEGAL SERVICES, S.L. could allege whatever it deemed appropriate in its defense and present the documents and information it considered pertinent, in accordance with Article 89.2 of the LPACAP.

TENTH: The resolution proposal was notified in accordance with the rules established in the LPACAP by electronic notification, being received by TECH TELECOM LEGAL SERVICES, S.L. on October 2, 2024, as evidenced by the acknowledgment of receipt in the file.

After the ten working days granted in the resolution proposal for the submission of allegations, TECH TELECOM LEGAL SERVICES, S.L. has not submitted any allegations.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

FIRST: The information requests indicated in the second and third recitals were notified in accordance with the provisions of the LPACAP.

SECOND: TECH TELECOM LEGAL SERVICES, S.L. has not responded to the information requests made by this Agency in the context of the investigation proceedings of file EXP202304413 within the time frames granted for this purpose.

THIRD: From the information collected by this Agency in file EXP202304413 and from the contract provided by TECH TELECOM LEGAL SERVICES, S.L. in its allegations to the initiation agreement of this procedure, it is confirmed that this entity is not responsible for the processing of the data requested in the information requests.

LEGAL GROUNDS

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5/7

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by TECH TELECOM LEGAL SERVICES, S.L., the following should be noted.

By virtue of the contract provided and the information contained in the file originating the requests (EXP202304413), it has been determined that TECH TELECOM LEGAL SERVICES, S.L. acts as an intermediary in communications with the operator providing the communication service, and is therefore not the data controller or processor of the requested data, and thus is not subject to the sanctioning liability for non-compliance with Article 58.1.a) GDPR, as typified in Article 83.5.e) GDPR. However, the following must be addressed regarding the allegations presented concerning the events that occurred.

Regarding the alleged impossibility by TECH TELECOM LEGAL SERVICES, S.L. to have "access to the requested information, unless STG GROUP provides it in a timely manner," it should be highlighted that this was not communicated to this Agency at any time despite the successive requests made, and it was only at the time of presenting allegations to the initiation Agreement of this sanctioning procedure that the appropriate explanations were provided, with TECH TELECOM LEGAL SERVICES, S.L. having not sent any response to this Agency until then.

In relation to the assertion that the provision of the requested information was prior to TECH TELECOM LEGAL SERVICES, S.L.'s knowledge of the initiation Agreement of this sanctioning procedure, it is relevant to point out that the response referred to, submitted on December 16, 2023, was after the initiation Agreement of this sanctioning procedure was issued, dated December 12, 2023, and also after the notification of its availability, dated December 13, 2023, as recorded in the acknowledgment of receipt in the file. Furthermore, it is noted that, in accordance with Article 41.6 of the LPACAP, on that date a notice was sent to the email address communicated to this Agency informing it of the availability of said notification in the electronic headquarters and at the single enabled electronic address.

6/7

Regarding the assertion that the same requested information was previously requested from LEAST COST ROUTING TELECOM, S.L. and was, it says, resolved on May 11, 2023, by LEAST COST ROUTING TELECOM, S.L., it is emphasized that the unaddressed information requests were issued after the response referred to, and repeatedly, therefore they should not simply be ignored and understood as having been answered by a prior document that, moreover, was not even submitted by TECH TELECOM LEGAL SERVICES, S.L.

From all of this, a lack of diligence on the part of this entity regarding the requests from this Agency made in the file EXP202304413 can be inferred, although no liability in the form of a sanction is determined.

Finally, regarding the information now provided in response to the requests, this Agency acknowledges receipt of the same, without this declaration implying any pronouncement on its suitability.

III

Filing

Article 89 of the LPACAP provides as follows:

"1. The instructing body shall resolve the termination of the procedure, with the filing of the actions, without the need for the formulation of a resolution proposal, when it is evident in the instruction of the procedure that any of the following circumstances exist:

- a) The non-existence of the facts that could constitute the infringement.
- b) When the facts are not proven.
- c) When the proven facts do not manifestly constitute an administrative infringement.
- d) When there is no person or persons responsible or when they appear exempt from liability.
- e) When it is concluded, at any time, that the infringement has expired.

2. In the case of sanctioning procedures, once the instruction of the procedure is concluded, the instructing body shall formulate a resolution proposal that must be notified to the interested parties.

The resolution proposal must indicate the disclosure of the procedure and the deadline for formulating allegations and presenting the documents and information deemed pertinent.”

In the present case, in light of the facts presented, it is considered that TECH TELECOM LEGAL SERVICES, S.L. is not the operator providing the communication service, nor is it therefore the data controller or processor of the requested data obliged by the regulations to provide the information to the supervisory authority, and it is concluded that the proven facts do not manifestly constitute an administrative infringement. Consequently, it is appropriate to agree to the filing of the procedure.

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7/7

Therefore, in accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the sanctioning procedure of file number EXP202315709.

SECOND: TO NOTIFY this resolution to TECH TELECOM LEGAL SERVICES, S.L., with NIF B42981118.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 938-16012024

Mar España Martí

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